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|   |                                                                                         | <p>contentions and it “would be unfair to the other parties to litigation” to ignore this fact. (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985.)</p> <p>Plaintiff to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 4 | <p><b>23-01329149</b></p> <p><b><i>Eikanas vs. Summit Healthcare REIT, Inc.</i></b></p> | <p><b>1) Motion to Challenge Privilege Clawback Attempt</b><br/> <b>2) Motion to Compel Answers to Special Interrogatories</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 5 | <p><b>23-01342492</b></p> <p><b><i>Er vs. APSEC Resolution Trust LLC</i></b></p>        | <p><b>1) Demurrer to Amended Complaint</b><br/> <b>2) Demurrer to Amended Complaint</b></p> <p>Defendant APSEC’s demurrer is OVERRULED in part as to the 1st-5th and 9th-11th causes of action and SUSTAINED in part as to the 6th-8th causes of action with leave to amend.</p> <p>Defendant ADM’s demurrer is OVERRULED in part as to the 1st-5th, 10th, and 11th causes of action and sustained in part as to the 6th and 7th causes of action with leave to amend.</p> <p><u>Judicial Notice</u></p> <p>Defendants’ requests for judicial notice are denied. Documents relating to the transactions alleged in the complaint, including the underlying loan documents, notices of default, and letters are not the subject of judicial notice.</p> <p><u>Wrongful Foreclosure</u></p> <p>The first cause of action is for wrongful foreclosure, the elements of which are: (1) the trustee or mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property under a power of sale in a mortgage or deed of trust; (2) the party attacking the sale was prejudiced or harmed; and (3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering. (<i>Turner v. Seterus, Inc.</i> (2018) 27 Cal.App.5th 516, 525.)</p> <p>Plaintiffs have properly alleged a wrongful foreclosure. Plaintiffs allege the foreclosure was fraudulent, plaintiffs were harmed, and they tendered the amount of indebtedness. (SAC, ¶¶ 50, 56, 57.) Thus, defendants’ demurrer to the 1st cause of action is overruled.</p> <p><u>Breach of Civil Code §§ 2923.5, 2924, 2924c, and 2924f</u></p> <p>“Whenever all or a portion of the principal sum of any obligation secured by deed or trust or mortgage on real property ... [has] become due or been declared due by reason of default in payment...the trustor or mortgagor or their successor in interest ... may pay to the beneficiary or the mortgagee or their successors in interest... the entire amount due ... other than the portion of principal as would not then be due had no default occurred....” (Civil Code, § 2924c.)</p> |

Defendants argue that plaintiffs remained in default of nonmonetary provisions of the deed of trust. However, the deed of trust is not a part of the SAC and is not the subject of proper judicial notice for the court to consider on demurrer. Thus, defendants' demurrer to the 2nd cause of action is overruled.

#### Cancellation of Trustee Deed

To plead on a claim to cancel an instrument, a plaintiff must plead: (1) the instrument is void or voidable due to, for example, fraud; and (2) there is a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of one's position. (U.S. *Bank National Association v. Naifeh* (2016) 1 Cal.App.5th 767, 779.)

Plaintiffs have properly alleged a claim for cancellation of an instrument. Plaintiffs allege the foreclosure was fraudulent and prejudice. (SAC, ¶¶ 79-95.) Thus, defendants' demurrer to the 3rd cause of action is overruled.

#### Set Aside Trustee Sale

To plead a claim to set aside a trustee sale, a plaintiff must plead: (1) the trustee or mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property under a power of sale in a mortgage or deed of trust; (2) the party attacking the sale, e.g., the trustor or mortgagor, was prejudiced or harmed; and (3) the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering. (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 104.)

As discussed in the first cause of action, plaintiffs have adequately plead fraud, harm, and tender. Thus, defendants' demurrer to the 4th cause of action is overruled.

#### Unfair Business Practices

The fifth cause of action is for unfair business practices under the Unfair Competition Law (the UCL), Bus. & Prof. Code §§ 17200 and 17500. The UCL prohibits, and provides civil remedies for, unfair competition. (*Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1265.) "Unfair competition" includes "any unlawful, unfair or fraudulent business act or practice." (Bus. & Prof. Code, § 17200.) The purpose of the UCL is to protect both consumers and competitors by promoting fair competition in commercial markets for goods and services. (*Gutierrez, supra*, 19 Cal.App.5th 1234, 1265.)

As discussed above, plaintiffs have adequately plead fraud. Thus, defendants' demurrer to the 5th cause of action is overruled.

#### Conspiracy to Defraud and Fraud

To plead a cause of action for fraud, a plaintiff must allege: (1) misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (or "scienter"); (3) intent to defraud, i.e., to

induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Amiodarone Cases* (2022) 84 Cal.App.5th 1091, 1109.) Each element “must be pled specifically; general and conclusory allegations do not suffice.” Ibid. Accordingly, plaintiffs must plead facts which “show how, when, where, to whom, and by what means the representations were tendered.” (*Ibid.*)

Plaintiffs have failed to adequately allege fraud. Plaintiffs have not plead justifiable reliance. They claim that their ignorance of the reduction in the visibility of the foreclosure sale constitutes reliance. However, Plaintiffs fail to allege how they relied upon the visibility of the sale. Thus, defendants’ demurrer to the 6th and 7th causes of action are sustained.

#### Breach of Contract

To plead a cause of action for breach of contract, a plaintiff must allege: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) “[I]t is absolutely essential to plead the terms of the contract either in haec verba or according to legal effect” (*Twaite v. Allstate Insurance Company* (1989) 216 Cal.App.3d 239, 252.)

Plaintiffs have failed plead the legal effect of the contract. Plaintiffs have not plead any of the terms of the contract they claim was breached. Thus, defendants’ demurrer to the 8th cause of action is sustained.

#### Unjust Enrichment

There is a split of authority as to whether unjust enrichment is a cause of action. (See *Melchior v. New Line Prods., Inc.* (2003) 106 Cal.App.4th 779, 793; *Levine v. Blue Shield of California* (2010) 189 Cal.App.4th 1117, 1138.) To the extent that it is a cause of action, the elements of a cause of action “are simply stated as ‘receipt of a benefit and unjust retention of the benefit at the expense of another.’ [Citations.]” (*Professional Tax Appeal v. Kennedy-Wilson Holdings* (2018) 29 Cal.App.5th 230, 238.)

Plaintiffs have adequately plead a claim for unjust enrichment. Plaintiffs allege defendant received an unjust benefit through its wrongful foreclosure. Thus, defendants’ demurrer to the 9th cause of action is overruled.

#### Quiet Title

To plead a cause of action for breach of contract, a plaintiff must allege: (1) a description of the property in question; (2) the basis for plaintiff’s title; and (3) the adverse claims to plaintiff’s title. (Cal. Code Civ. Proc., § 761.020.)

Plaintiffs have adequately alleged a description of the property, they tendered the amount necessary “to bring the defaulted loans current”,

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|          |                                                                                        | <p>and an adverse claim. (SAC, ¶¶ 1, 173-177.) Thus, APSEC's demurrer to the 10th cause of action is overruled.</p> <p><u>Reinstatement of Loan</u></p> <p>As discussed above, plaintiffs have adequately alleged a cause of action for wrongful foreclosure. Thus, plaintiffs may reinstate their loan. Therefore, defendants' demurrer to the 11th cause of action is overruled.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>6</b> | <p><b>23-01333845</b></p> <p><b><i>Garcia vs. Mazda Motor of America, Inc.</i></b></p> | <p><b>Motion to Compel Production</b></p> <p><b>OFF CALENDAR</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>7</b> | <p><b>22-01241218</b></p> <p><b><i>Gay vs. Nguyen</i></b></p>                          | <p><b>Motion for Summary Judgement and/or Adjudication</b></p> <p>The motion of defendant Memorial Care Surgical Center at Orange Coast, LLC ("Surgery Center") for Summary Judgment in favor of the Surgery Center as to plaintiffs David L. Gay and Jamie Gay's Second Amended Complaint is DENIED.</p> <p><u>Evidentiary Objections:</u></p> <p>California Rules of Court, Rule 3.1354, subdivision (b) which states in pertinent part: "Each written objection must be numbered consecutively and must: . . . (3) Quote or set forth the objectionable statement or material. . ."</p> <p>Both Surgery Center and Plaintiffs have filed extensive evidentiary objections, however, neither party has complied with Rule 3.1354 and quoted or set forth the objectionable statement or material to which the objection is made. Therefore, the Court declines to rule on the evidentiary objections filed by the parties.</p> <p><u>Request for Judicial Notice:</u></p> <p>Surgery Center's Request for Judicial Notice of Exhibits A-U is GRANTED.</p> <p>Plaintiffs' Request for Judicial Notice is DENIED as unnecessary to the disposition of the Motion.</p> <p><u>Merits:</u></p> <p>"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc. § 437c(a)(1).) "A defendant moving for summary judgment must show 'that one or more elements of the cause of action...cannot be established, or that there is a complete defense to the cause of action.'" (<i>Wicks v. Antelope Valley Healthcare District</i> (2020) 49 Cal.App.5th 866, 875.) "Summary judgment is appropriate where 'all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.'" (<i>Wicks, supra</i>, 49 Cal.App.5th 875.) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto." (Code Civ. Proc. § 437c(p)(2).)</p> |